

The complaint

Ms T is unhappy with how Fairmead Insurance Limited dealt with a claim under her home insurance policy.

What happened

In November 2019 Ms T made a claim against her home insurance policy provided by Fairmead. After a period of heavy rain she had water enter her property through a damaged roof. This caused damage to the inside of her property.

Ms T has complained that Fairmead processed her claim as storm damage and declined it because there weren't storm conditions on the day the water came in. She believes a roof tile was damaged by her son causing a slow leak. The damaged roof tile then failed in heavy rain conditions, so Ms T thinks it should've been dealt with as an accidental damage claim.

Our investigator said that Ms T had accidental damage cover on her policy, and damage to the roof caused by her son wouldn't be excluded under this clause. He also said that the loss adjuster's report said the damage wasn't caused by a storm, so he thought this went some way to supporting a claim for accidental damage. Additionally, he said that Fairmead never asked Ms T what caused the damage or for her version of events.

Because of this, he didn't think it was fair that Fairmead should've discounted accidental damage. And he thought they should reassess the claim in line with the accidental damage cover Ms T had.

Fairmead didn't agree with the investigator. They say that when Ms T reported the claim, she said that the damage was caused by heavy rain. So they think it was reasonable for them to consider this as a storm damage claim. They also don't think the claim, as described, was consistent with accidental damage, which added weight to this being a storm damage claim.

So Fairmead have asked for an ombudsman to make a final decision and give them further guidance as to how they should reasonably process this as an accidental damage claim.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I have reached the same overall conclusions as the investigator, and for broadly the same reasons. I've focused my comments on what I think is relevant. If I haven't commented on any specific point, it's because I don't believe it's affected what I think is the right outcome.

It's not disputed that Ms T was covered for both storm damage and accidental damage through her home insurance policy. It's also not disputed that, on the day Ms T noticed the leak, the weather conditions weren't sufficiently bad to be defined as a storm under the terms of her policy.

I've seen the system notes for when Ms T reported the claim on 11 November 2019. These notes say:

"Heavy rains yesterday insured noticed that there was dripping through ceiling. Insured has had water coming through the roof – roofer has been out to the property and found some broken tiles. Water has run down into the ceiling of one of the rooms. The ceiling is cracked and bowing and the builder has said this is likely to fall down ... I explained to the insured that in order to cover under Storm we would need to confirm that weather has exceeded threshold defined in the policy."

Because the weather conditions on 10 November 2019 didn't meet the policy definition of a storm, the claim was declined. Ms T was unhappy with this, and Fairmead arranged for a loss adjuster to inspect her property. The loss adjuster's report said that the roof had been repaired, and there were no photographs of the damage. But it also says that the damage caused wasn't consistent with a storm, the area damaged wasn't susceptible to storm damage, and there was no evidence of storm *"to this or neighbouring properties."*

Based on what I've seen, I don't think Fairmead have acted unfairly by saying that the damage to the roof wasn't caused by a storm.

I've listened to the call that took place on 11 November 2019 where Ms T first reported the claim. At no point did she say she thought the damage was caused by a storm. Ms T was asked for details of the damages that'd happened, and she said was as a result of water coming in through a broken tile. She also said that it looks like it's been coming through for a while, but she'd first noticed this when she heard dripping during a period of heavy rainfall.

But Ms T wasn't asked how she thought the tile became broken. Instead the claim was processed as storm damage because Ms T had said the leak happened when it was raining. I appreciate Ms T didn't say at this point that her son had been on the roof, and he may have caused some accidental damage. But she was told *"unless we're able to meet the storm conditions ... those need to be established before we're even able to consider the claim because there isn't any other peril that we're able to cover roof damage under."* Because of this, it's reasonable for Ms T to have thought at this stage that accidental damage to the roof wouldn't be covered.

It's fair to say that water would only have come in during rainy conditions. So Fairmead were right to consider storm damage. But, especially because Ms T had told them she suspected this leak had been ongoing for some time, I think it was unfair for Fairmead to consider storm damage to the exclusion of all other insured events.

And, because Ms T wasn't asked about the circumstances of the damage, I don't think it's fair that her saying it was accidental damage caused by her son having been on the roof is being classed as a change in circumstances – as she was never asked the circumstances, she hasn't changed these. The circumstances were always assumed by the person taking the claim because the leak had been noticed during a period of heavy rainfall.

Putting things right

It's not my role to re-underwrite this claim and decide how the roof damage was caused. But, for the reasons given above, I agree there's sufficient evidence to show that Ms T wasn't asked enough questions at the outset to determine possible causes of the damage to the roof. So I don't think Fairmead acted fairly by only considering storm damage.

Because of this, Fairmead should reconsider an accidental damage claim.

It's also not my role to tell Fairmead how to process this claim. I'd expect them to deal with it fairly, and in line with how they'd deal with any other similar claim they received. Fairmead have mentioned that it's for Ms T to provide some proof that this was an insurable event i.e. that the roof was accidentally damaged, and this damage caused water to get in during heavy rain. If that's how they would usually treat such a claim, then I don't think it's unfair that they now do so when dealing with Ms T's claim.

My final decision

For the reasons explained above uphold Ms T's complaint about Fairmead Insurance Limited and they must follow my directions.

Under the rules of the Financial Ombudsman Service, I'm required to ask X to accept or reject my decision before 29 October 2020.

Andrew Burford
Ombudsman